

25STCV06371 25STCV06371

County: los-angeles

Division: Civil Law and Motion

Department: 516

Hearing date: 2026-08-12

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C516%2C08%2F12%2F2026

Source SHA-256: 591af0c6b4ef078fb26b4880d58cfee97cf29ecdc9e3d1294d7289d48eea1d7e

Case Number: 25STCV06371 Hearing Date: August 12, 2026 Dept: 516

Judge James I. Montgomery

Department 516

Hearing Date: August 12, 2026

Case Name: Cockrell v. Cohen, et al.

Case

No.: 25STCV06371

Matter: Demurrer with Motion to Strike

Moving

Party: Defendants Robin A. Sax

and Law Offices of Robin Sax

Responding Party: Plaintiff Ross Cockrell

Matter: Demurrer

with Motion to Strike

Moving

Party: Defendants Karen

Elizabeth Silver and Ribet & Silver

Responding Party: Plaintiff Ross Cockrell

Matter: Demurrer
with Motion to Strike

Moving

Party: Defendants Philip Kent
Cohen and Philip Kent Cohen, APC

Responding Party: Plaintiff Ross Cockrell

Tentative

Ruling: The Court sustains Defendants

Robin A. Sax and Law Offices of Robin Sax's demurrer. The Court grants Sax's motion to strike.

The Court

sustains Defendants Karen Elizabeth Silver and Ribet & Silver's demurrer.

The Court Silver's motion to strike.

The Court

sustains Defendants Philip Kent Cohen and Philip Kent Cohen, APC's demurrer.

The Court grants Kent's motion to strike.

Plaintiff

Ross Cockrell ("Plaintiff") filed this action against Defendants Philip Kent Cohen, Robin A. Sax, Karen Elizabeth Silver, Philip Kent Cohen, APC, Law Offices of Robin Sax, Ribet & Silver (collectively "Defendants") and Does 1 through 100. The Complaint alleged two causes of action: (1) professional negligence; and (2) declaratory relief.

On February

3, 2026, the Court sustained Defendant Robin A. Sax and Law Offices of Robin Sax's (collectively "Sax") demurrer as to the second cause of action and struck both attorney's fees and punitive damages.

On February

3, 2026, the Court sustained Defendants Karen Elizabeth Silver and Ribet & Silver's (collectively "Silver") demurrer as to the second cause of action and struck both attorney's fees and punitive damages.

On March

30, 2026, Plaintiff filed a First Amended Complaint ("FAC") alleging four causes of action for: (1) professional negligence; (2) intentional misrepresentation; (3) concealment; and (4) breach of fiduciary duty.

Sax demurs

to Plaintiff's second, third, and fourth causes of action for failure to allege sufficient facts, violation of the February 3, 2026, Court Order, and for duplicative causes of action. Sax also moves to strike portions of the FAC. Plaintiff opposes.

Silver

demurs to Plaintiff's second, third, and fourth causes of action for failure to allege sufficient facts, violation of the February 3, 2026, Court Order, and for duplicative causes of action. Silver also moves to strike portions of the FAC. Plaintiff opposes.

Philip Kent

Cohen and Philip Kent Cohen, APC ("Kent") demurs to Plaintiff's second, third, and fourth causes of action for failure to allege sufficient facts, violation of the February 3, 2026, Court Order, and for duplicative causes of action. Kent also moves to strike portions of the FAC. Plaintiff opposes.

Legal Standard

A demurrer is an objection to a pleading, the grounds for which are apparent from either the face of the complaint or a matter of which the court may take judicial notice. (Code Civ. Proc., § 430.30, subd. (a); see also *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) The purpose of a demurrer is to challenge the sufficiency of a pleading by raising questions of law. (Postley v. Harvey (1984) 153 Cal.App.3d 280, 286.) "In the construction of a pleading, for the purpose of determining its effect, its allegations must be liberally construed, with a view to substantial justice between the parties." (Code Civ. Proc., § 452.) The court "treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law" (Berkley v. Dowds (2007) 152 Cal.App.4th 518, 525.) In applying these standards, the court liberally construes the complaint to determine whether a cause of action has

been stated. (Picton v. Anderson Union High School Dist. (1996)
50 Cal.App.4th 726, 733.)

A court may, upon motion, or at any
time in its discretion, strike any irrelevant, false, or improper matter
inserted in any pleading. (Code Civ. Proc., § 436, subd. (a).)
Furthermore, a court may also strike all or any part of any pleading not drawn
or filed in conformity with the laws of this state, a court rule, or an order
of the court. (Code Civ. Proc., § 436, subd. (b).) The grounds
for moving to strike must appear on the face of the pleading. (Code Civ.
Proc., § 437.)

Evidentiary Objections

Silver's
Demurrer and Motion to Strike

Silver
makes five evidentiary objections to Plaintiff's opposition to its demurrer.
The Court overrules all five evidentiary objections.

Silver
makes four evidentiary objections to Plaintiff's opposition to its motion to
strike. The Court overrules all four evidentiary objections.

Analysis

A.
Sax's Demurrer and Motion to Strike

Meet and
Confer

Pursuant to Code of Civil Procedure
section 430.41, "a demurring party is required to meet and confer in person, by
telephone, or video conference with the party that filed the pleading. . . ."
(Code Civ. Proc. § 430.41, subd. (a).) A moving party in a motion to strike
must meet and confer before filing the motion. (Code Civ. Proc. § 435.5, subd.
(a).)

Sax

contends that on May 6, 2026, the parties met and conferred over a Zoom call. (Niedbalski Decl., ¶ 3.) Thus, the parties fulfilled their meet-and-confer obligations.

Demurrer

Sax demurs

to Plaintiff's second, third, and fourth causes of action for failure to allege sufficient facts, violation of the February 3, 2026, Court Order, and for duplicative causes of action.

Court Order

As

an initial matter, Sax contends that Plaintiff violated the February 3, 2026, Court Order.

"It is the

rule that when a trial court sustains a demurrer with leave to amend, the scope of the grant of leave is ordinarily a limited one. It gives the pleader an opportunity to cure the defects in the particular causes of action to which the demurrer was sustained, but that is all. [Citation.] 'The plaintiff may not amend the complaint to add a new cause of action without having obtained permission to do so, unless the new cause of action is within the scope of the order granting leave to amend.'" (Community Water Coalition v. Santa Cruz County Local Agency Formation Com. (2011) 200 Cal.App.4th 1317, 1329 (Community) (citation omitted).)

While Plaintiff

exceeded the scope of the Court order, a demurrer on that basis is not procedurally proper.

Thus, the

Court overrules Sax's demurrer on this basis.

Duplicative

A

demurrer may be sustained when two causes of action are duplicative and do not

add any new facts or theory. (Palm Springs Villas II Homeowners Assn., Inc. v. Parth (2016) 248 Cal.App.4th 268, 290 (Palm Springs); Award Metals, Inc. v. Superior Court (1991) 228 Cal.App.3d 1128, 1135 (Award Metals).) “Where the injury is suffered by reason of an attorney's professional negligence, the gravamen of the claim is legal malpractice, regardless of whether it is pled in tort or contract.” (Quintilliani v. Mannerino (1998) 62 Cal.App.4th 54, 64 (Quintilliani).)

Sax

contends that Plaintiff's second through third causes of action are duplicative of Plaintiff's first cause of action for professional negligence. Sax asserts that even though Plaintiff attempts to separately allege the causes of action, the causes of action depend on Sax's alleged “lack of skill” to call witnesses and defend Plaintiff at trial. (Mot., 11:21-23.)

In

opposition, Plaintiff disputes Sax's argument because he contends that each cause of action is based on different facts and carries different consequences.

However,

the Court is not persuaded by Plaintiff's argument. Plaintiff reintegrates and bases his second through fourth causes of action on allegations 1 through 78 (FAC, ¶¶ 1-78.) Additionally, the allegations made under each cause of action are conclusory allegations. (FAC, ¶¶ 85-91, 93-98, 100-104.) The Court also notes that Plaintiff attached Exhibit A to his opposition, which includes discovery that is outside the four corners of the FAC. (Opp., Ex. A.) This chart does not address the issue raised by the Court.

Thus, the demurrer

is sustained on the basis that the second through fourth causes of action are duplicative as written in the FAC. The Court will not address the remaining arguments regarding failure to allege sufficient facts, as the Court will address them under the motion to strike portion of this ruling.

Motion

to Strike

Sax moves

to strike the second, third, and fourth causes of action in their entirety. Sax also moves to strike the following portions of the FAC: (1) ¶ 78; (2) ¶ 83; (3)

prayer for punitive damages under the first, second, third, and fourth causes of action; and (4) prayer for attorney's fees under the first, second, third, and fourth causes of action.

Second,

Third, and Fourth Causes of Action

"It is the

rule that when a trial court sustains a demurrer with leave to amend, the scope of the grant of leave is ordinarily a limited one. It gives the pleader an opportunity to cure the defects in the particular causes of action to which the demurrer was sustained, but that is all. [Citation.] 'The plaintiff may not amend the complaint to add a new cause of action without having obtained permission to do so, unless the new cause of action is within the scope of the order granting leave to amend.'" (Community, supra, 200 Cal.App.4th at p. 1329.)

Sax argues

that the causes of action should be stricken because Plaintiff exceeded the limited scope of leave to amend that was granted to file an amended pleading after the Court sustained the demurrer and granted the motion to strike.

In

opposition, Plaintiff in argument under Sax's case, cite Harris v. Wachovia Mortgage, FSB (2010) 185 Cal.App.4th 1018. As an initial matter, Sax did not cite to Harris in its motion to strike. Plaintiff relies on two more cases to argue that he is entitled to include the new causes of action because the new causes of action "directly respond to the court's reason for sustaining the earlier demurrer." (Patrick v. Alacer Corp. (2008) 167 Cal.App.4th 995, 1015.) The Court finds that both Patrick and Rope are inapplicable because both cases related to a demurrer and not a motion to strike. Additionally, in Patrick, the new cause of action was for declaratory relief to assert Plaintiff's standing in the case. (Id. at p. 1015.) While in Rope, the new cause of action was added regarding the issues presented on the demurrer, not the motion to strike. (Rope v. Auto-Chlor System of Washington, Inc. (2013) 220 Cal.App.4th 635, 654.) The opposition also cites to the reasoning under the Court's ruling under the motion to strike and not the demurrer. (Opp., 8:2.)

Thus, the

motion to strike the second, third, and fourth causes of action is granted because the additional causes of action exceeded the scope of leave to amend. Plaintiff is required to follow the proper procedure to include additional causes of action.

Prayer
for Attorney's Fees

Under the American rule, it "provides that each party to a lawsuit must ordinarily pay his own attorney fees." (Trope v. Katz (1995) 11 Cal.4th 274, 278.) Code of Civil Procedure section 1021 provides that each party is to bear his own attorney fees unless a statute or the agreement of the parties provides otherwise. (See Code Civ. Proc., § 1021.) "Fees paid to a second attorney to correct errors committed by a prior attorney represent damages recoverable in a legal malpractice action." (Callahan v. Gibson, Dunn & Crutcher LLP (2011) 194 Cal.App.4th 557, 582 (Callahan).)

At the February 3, 2026, hearing, the Court identified that Plaintiff has not identified any basis for which he can recover attorney's fees.

In opposition, Plaintiff states that he does not oppose striking attorney's fees.

Thus, the Court grants the motion to strike Plaintiff's prayer for relief for attorney's fees.

Prayer for Punitive Damages

California Civil Code section 3294 defines malice as "conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others." (Civ. Code, § 3294, subd. (c)(1).) California Civil Code section 3294 states that oppression "means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights." (Civ. Code, § 3294, subd. (c)(1).) Lastly, California Civil Code section 3294, states fraud is "an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of

thereby depriving a person of property or legal rights or otherwise causing injury.” (Civ. Code, § 3294, subd. (c)(1).)

“Simple negligence cannot support an award of punitive damages.” (Jackson v. Johnson (1992) 5 Cal.App.4th 1350, 1354.) “Pleading in the language of the statute is acceptable provided that sufficient facts are pleaded to support the allegations. [Citation.] The terms themselves are conclusory, however.” (Blegen v. Superior Court (1981) 125 Cal.App.3d 959, 963.)

Here, because the Court has stricken the second, third, and fourth causes of action, there is no basis for the prayer for punitive damages under these causes of action; thus, the motion to strike is granted as to these prayers for punitive damages.

The remaining cause of action is for professional negligence only.

In opposition, Plaintiff argues that all 78 allegations support the prayer for punitive damages. The Court notes that Plaintiff cites to Pacific Gas & Electric Co. v. Superior Court (2018) 24 Cal.App.5th 1150, 1158, but the Court was unable to find the case with this specific citation. (Opp., 10:24-27.) However, Plaintiff asserts that he has alleged six phases of intentional misrepresentation and concealment to support punitive damages under Civil Code section 3294, subdivision (c)(3). However, paragraphs 28 through 78 are alleged as “additional allegations in support of misrepresentation and concealment causes of action”

The FAC includes a new heading of allegations from page five through 23. However, there is a discrepancy in the heading, as Plaintiff names the heading as an additional allegation in support of misrepresentation and concealment causes of action. In reviewing the allegations related to the cause of action for professional negligence, the Court finds insufficient allegations to support a claim for punitive damages under Civil Code section 3294, subdivision (c)(3).

Thus, the motion to strike the prayer for relief under the second, third, and fourth causes of action are rendered moot.

The motion to strike punitive damages under the first cause of action is granted.

Leave to Amend

Leave to amend must be allowed

where there is a reasonable possibility of successful amendment. (See Goodman v. Kennedy (1976) 18 Cal.3d 335, 349 [court shall not “sustain a demurrer without leave to amend if there is any reasonable possibility that the defect can be cured by amendment”]; Kong v. City of Hawaiian Gardens Redevelopment Agency (2002) 108 Cal.App.4th 1028, 1037 [“A demurrer should not be sustained without leave to amend if the complaint, liberally construed, can state a cause of action under any theory or if there is a reasonable possibility the defect can be cured by amendment.”]; Vaccaro v. Kaiman (1998) 63 Cal.App.4th 761, 768 [“When the defect which justifies striking a complaint is capable of cure, the court should allow leave to amend.”].) The burden is on the complainant to show the Court that the pleading can be successfully amended. (Blank v. Kirwan (1985) 39 Cal.3d 311, 318.)

The burden is on the Plaintiffs to show the Court that the pleading can be successfully amended. The opposition to the demurrer and motion to strike do not support granting leave to amend.

B.

Silver’s Demurrer and Motion to Strike

Meet and Confer

Pursuant to Code of Civil Procedure

section 430.41, “a demurring party is required to meet and confer in person, by telephone, or video conference with the party that filed the pleading. . . .” (Code Civ. Proc. § 430.41, subd. (a).) A moving party in a motion to strike must meet and confer before filing the motion. (Code Civ. Proc. §435.5, subd. (a).)

Silver contends that on May 6, 2026, the parties met and conferred. (Caplan Decl., ¶ 3.) Thus, the parties fulfilled their meet and confer obligations.

Demurrer

Sax demurs

to Plaintiff's second, third, and fourth causes of action for failure to allege sufficient facts, violation of the February 3, 2026, Court Order, and for duplicative causes of action.

Court

Order

As

an initial matter, Sax contends that Plaintiff violated the February 3, 2026, Court Order.

"The

plaintiff may not amend the complaint to add a new cause of action without having obtained permission to do so, unless the new cause of action is within the scope of the order granting leave to amend." (Harris v. Wachovia Mortgage, FSB (2010) 185 Cal.App.4th 1018, 1023.)

As

addressed above, under the Court's analysis of Plaintiff's FAC, Plaintiff

exceeded the scope of the Court Order. However, a demurrer on that basis is not procedurally proper.

Thus, the

Court overrules Silver's demurrer on this basis.

Duplicative

A demurrer

may be sustained when two causes of action are duplicative and do not add any new facts or theory. (Palm Springs, *supra*, 248 Cal.App.4th at p. 290; Award Metals, *supra*, 228 Cal.App.3d at p. 1135.) "Where the injury is suffered by reason of an attorney's professional negligence, the gravamen of the claim is legal malpractice, regardless of whether it is pled in tort or contract." (Quintilliani, *supra*, 62 Cal.App.4th at p. 64.)

Silver

contends that each of Plaintiff's allegations for the second, third, and fourth causes of action are dependent upon the same allegations, that each of them is based on the first cause of action. Silver contends that the causes of action are duplicative because the allegations are based on the ethical legal standards under the first cause of action.

In

opposition, Plaintiff disputes Silver's argument because he contends that each cause of action is based on different facts and carries different consequences.

The Court

is not persuaded by Plaintiff's argument. Plaintiff reintegrates and bases his second through fourth causes of action on allegations 1 through 78. (FAC, ¶¶ 1-78.) Additionally, the allegations made under each cause of action are conclusory and do not provide additional allegations for each cause of action. (FAC, ¶¶ 85-91, 93-98, 100-104.) The Court also notes that Plaintiff attached Exhibit A to his opposition, which includes discovery that is outside the four corners of the FAC. (Opp., Ex. A.)

Thus, the

demurrer is sustained on the basis that the second, third, and fourth causes of action are duplicative as written in the FAC. The Court will not address the remaining arguments regarding Plaintiff's failure to allege sufficient facts, as the Court will address another basis to strike the portions of the FAC under the motion to strike portion of this ruling.

Motion

to Strike

Silver

moves to strike the second, third, and fourth causes of action in their entirety, and the prayer for relief for the three causes of action. Silver also moves to strike punitive damages and attorney's fees under the first cause of action.

Second,

Third, and Fourth Causes of Action

"It is the

rule that when a trial court sustains a demurrer with leave to amend, the scope of the grant of leave is ordinarily a limited one. It gives the pleader an opportunity to cure the defects in the particular causes of action to which the demurrer was sustained, but that is all. [Citation.] 'The plaintiff may not amend the complaint to add a new cause of action without having obtained permission to do so, unless the new cause of action is within the scope of the order granting leave to amend.'" (Community, supra, 200 Cal.App.4th at p. 1329.)

Both Silver

and Plaintiff make identical arguments as Sax and Plaintiff made in their motions and opposition. The Court reintegrates the legal arguments made and Court's analysis addressed above. The outcome is also the same for Silver's motion to strike as it is under Sax's motion to strike. Plaintiff exceeded the scope of the February 3, 2026, Court Order.

Thus, the

motion to strike the second, third, and fourth causes of action is granted because the additional causes of action exceeded the scope of leave to amend. Plaintiff is required to follow the proper procedure to include additional causes of action. Additionally, because the second, third, and fourth causes of action are stricken, so are the prayers for relief for these causes of action.

Attorney's Fees

"Under the

American rule, as a general proposition each party must pay his own attorney fees." (Gray v. Don Miller & Associates, Inc. (1984) 35 Cal.3d 498, 504.) Code of Civil Procedure section 1021 provides that each party is to bear his own attorney fees unless a statute or the agreement of the parties provides otherwise. (See Code Civ. Proc., § 1021.) "Fees paid to a second attorney to correct errors committed by a prior attorney represent damages recoverable in a legal malpractice action." (Callahan, supra, 194 Cal.App.4th at p. 582.)

Plaintiff

has not identified a valid basis upon which he is entitled to recover attorneys' fees. He did not allege that he is entitled to recover attorneys' fees under a contract between the parties or on a statutory basis. Under the American rule, Plaintiff is required to pay his own attorney fees. However, should he prevail, the fees he accrues in this action constitute his damages. (See Callahan,

supra, 194 Cal.App.4th at p. 582 (Callahan).)

At the

February 3, 2026, hearing, the Court identified that Plaintiff has not identified any basis for which he can recover attorney's fees.

In

opposition, Plaintiff states that he does not oppose striking attorney's fees.

Thus, the

Court grants the motion to strike Plaintiff's prayer for relief for attorney's fees.

Punitive

Damages

Prayer for Punitive Damages

California Civil Code section 3294

defines malice as "conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others."

(Civ. Code, § 3294, subd. (c)(1).) California Civil Code section 3294 states that oppression "means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights." (Civ. Code, § 3294, subd. (c)(1).) Lastly, California Civil Code section 3294, states fraud is "an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury." (Civ. Code, § 3294, subd. (c)(1).)

Here, because the Court has

stricken the second, third, and fourth causes of action, there is no basis for the prayer for punitive damages under these causes of action; thus, the motion to strike is moot as to these prayers for punitive damages. The remaining cause of action is for professional negligence only.

Plaintiff makes identical arguments

as he did in Sax's motion to strike. The Court reintegrates Plaintiff's argument.

The FAC includes a new heading of allegations from page five through 23. However, Plaintiff names the heading as “additional allegation in support of misrepresentation and concealment causes of action”. In reviewing the allegations related to the cause of action for professional negligence, the Court finds insufficient allegations to support a claim for punitive damages under Civil Code section 3294, subdivision (c)(3).

Thus, the motion to strike the prayer for relief under the second, third, and fourth causes of action is granted.

The motion to strike punitive damages under the first cause of action is granted.

Leave to Amend

Leave to amend must be allowed where there is a reasonable possibility of successful amendment. (See Goodman v. Kennedy (1976) 18 Cal.3d 335, 349 [court shall not “sustain a demurrer without leave to amend if there is any reasonable possibility that the defect can be cured by amendment”]; Kong v. City of Hawaiian Gardens Redevelopment Agency (2002) 108 Cal.App.4th 1028, 1037 [“A demurrer should not be sustained without leave to amend if the complaint, liberally construed, can state a cause of action under any theory or if there is a reasonable possibility the defect can be cured by amendment.”]; Vaccaro v. Kaiman (1998) 63 Cal.App.4th 761, 768 [“When the defect which justifies striking a complaint is capable of cure, the court should allow leave to amend.”].) The burden is on the complainant to show the Court that the pleading can be successfully amended. (Blank v. Kirwan (1985) 39 Cal.3d 311, 318.)

The burden is on the Plaintiffs to show the Court that the pleading can be successfully amended. The opposition to the demurrer and motion to strike do not support granting leave to amend.

C.

Kent’s Demurrer and Motion to Strike

Meet
and Confer

Pursuant to Code of Civil Procedure

section 430.41, “a demurring party is required to meet and confer in person, by telephone, or video conference with the party that filed the pleading. . . .”

(Code Civ. Proc. § 430.41, subd. (a).) A moving party in a motion to strike must meet and confer before filing the motion. (Code Civ. Proc. §435.5, subd. (a).)

Kent

contends that the parties met and conferred over Zoom. (Cantrell Decl., ¶ 3.)

Thus, the parties fulfilled their meet-and-confer obligations.

Demurrer

Kent demurs

to Plaintiff’s second, third, and fourth causes of action for failure to allege sufficient facts, violation of the February 3, 2026, Court Order, and for duplicative causes of action.

Court Order

As

an initial matter, Kent contends that Plaintiff violated the February 3, 2026, Court Order. However, this argument fails on two grounds: (1) the Court never ruled on Kent’s demurrer, so leave to amend as to it was never ordered; and (2) a demurrer on this basis is procedurally improper.

Thus, the

Court overrules Kent’s demurrer on this basis.

Duplicative

A demurrer

may be sustained when two causes of action are duplicative and do not add any new facts or theory. (Palm Springs, supra, 248 Cal.App.4th at p. 290; Award Metals, supra, 228 Cal.App.3d at p.

1135.) “Where the injury is suffered by reason of an attorney’s professional negligence, the gravamen of the claim is legal malpractice, regardless of whether it is pled in tort or contract.” (Quintilliani, supra, 62 Cal.App.4th at p.64.)

Kent

contends that each of Plaintiff's allegations for the second, third, and fourth causes of action are dependent upon the same allegations, that each of them is based on the first cause of action. Kent contends that the causes of action are duplicative because the allegations are based on the ethical legal standards under the first cause of action.

In opposition,

Plaintiff disputes Silver's argument because he contends that each cause of action is based on different facts and carries different consequences.

The Court

is not persuaded by Plaintiff's argument. Plaintiff reintegrates and bases his second through fourth causes of action on allegations 1 through 78. (FAC, ¶¶ 1-78.) Additionally, the allegations made under each cause of action are conclusory and do not provide additional allegations for each cause of action. (FAC, ¶¶ 85-91, 93-98, 100-104.) The Court also notes that Plaintiff attached Exhibit A to his opposition, which includes discovery that is outside the four corners of the FAC. (Opp., Ex. A.)

Thus, the

demurrer is sustained on the basis that the second, third, and fourth causes of action are duplicative of the first cause of action as written in the FAC. The Court declines to address Defendant's additional arguments.

Motion

to Strike

Kent

moves to strike the second, third, and fourth causes of action, and prayers for relief under these causes of action. Plaintiff also moves for punitive damages and attorney's fees under the first cause of action.

Second, Third, and Fourth
Causes of Action

As

addressed, under Kent's demurrer portion of this ruling, the Court did not rule on Kent's previous demurrer. Thus, leave to amend was not as to it. However, at this hearing, the demurrer has been sustained as to the second, third, and

fourth causes of action as duplicative. Thus, the motion to strike as to the second, third, and fourth causes of action is granted.

Attorney's
Fees

The
parties make identical arguments as in Silver and Sax's motion to strike. The Court reintegrates those arguments in Kent's motion to strike.

Plaintiff
has not identified a valid basis upon which he is entitled to recover attorneys' fees. He did not allege that he is entitled to recover attorneys' fees under a contract between the parties or on a statutory basis. Under the American rule, Plaintiff is required to pay his own attorney fees. However, should he prevail, the fees he accrues in this action constitute his damages. (See Callahan, *supra*, 194 Cal.App.4th at p. 582 (Callahan).)

In
opposition, Plaintiff states that he does not oppose striking attorney's fees.

Thus, the
Court grants Kent's motion to strike Plaintiff's prayer for relief for attorney's fees.

Prayer
for Punitive Damages

Here, because the Court has sustained the demurrer as to the second, third, and fourth causes of action, there is no basis for the prayer for punitive damages under these causes of action; thus, the motion to strike is moot as to these prayers for punitive damages. The remaining cause of action is for professional negligence only.

The parties make identical
arguments as in Sax and Silver's motions. The Court reintegrates those arguments in Kent's motion to strike the prayer for punitive damages.

The FAC includes a new heading of
allegations from page five through 23. However, Plaintiff names the heading as "additional

allegation in support of misrepresentation and concealment causes of action". In reviewing the allegations related to the cause of action for professional negligence, the Court finds insufficient allegations to support a claim for punitive damages under Civil Code section 3294, subdivision (c)(3).

Thus, the motion to strike the prayer for relief under the second, third, and fourth causes of action is granted.

The motion to strike punitive damages under the first cause of action is granted.

Leave to Amend

Leave to amend must be allowed where there is a reasonable possibility of successful amendment. (See Goodman v. Kennedy (1976) 18 Cal.3d 335, 349 [court shall not "sustain a demurrer without leave to amend if there is any reasonable possibility that the defect can be cured by amendment"]; Kong v. City of Hawaiian Gardens Redevelopment Agency (2002) 108 Cal.App.4th 1028, 1037 ["A demurrer should not be sustained without leave to amend if the complaint, liberally construed, can state a cause of action under any theory or if there is a reasonable possibility the defect can be cured by amendment."]; Vaccaro v. Kaiman (1998) 63 Cal.App.4th 761, 768 ["When the defect which justifies striking a complaint is capable of cure, the court should allow leave to amend."].) The burden is on the complainant to show the Court that the pleading can be successfully amended. (Blank v. Kirwan (1985) 39 Cal.3d 311, 318.)

The burden is on the Plaintiffs to show the Court that the pleading can be successfully amended. The opposition to the demurrer and motion to strike do not support granting leave to amend.

Conclusion

A. Sax's
Demurrer and Motion to Strike

The Court
sustains Sax's demurrer as to the second, third, and fourth causes of action.

The Court

grants Sax's motion to strike Plaintiff's second, third, and fourth causes of action.

The Court

grants Sax's motion to strike Plaintiff's prayer for attorney's fees.

The Court grants

Sax's motion to strike Plaintiff's
prayer for punitive damages.

B.

Silver's Demurrer and Motion to Strike

The Court

sustains Silver's demurrer as to the second, third, and fourth causes of action.

The Court

grants Silver's motion to strike Plaintiff's second, third, and fourth causes of action.

The Court

grants Silver's motion to strike Plaintiff's prayer for attorney's fees.

The Court grants

Silver's motion to strike Plaintiff's prayer for punitive damages.

C.

Kent's Demurrer and Motion to Strike

The Court

sustains Kent's demurrer as to the second, third, and fourth causes of action.

The Court

grants Kent's motion to strike Plaintiff's second, third, and fourth causes of action.

The Court

grants Kent's motion to strike Plaintiff's prayer for attorney's fees.

The Court grants

Kent's motion to strike Plaintiff's prayer for punitive damages.